

THE RIGHT TO TRAVEL

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⚠️ IMPORTANT NOTICE

This publication presents one side of an active legal debate. It is designed to **steel-man the arguments against mandatory driver's licensing** using real case law and statutory analysis. It is not legal advice.

The author acknowledges that courts have generally upheld driver's license requirements under the police power doctrine. This guide presents the **strongest version of the opposing argument** so that readers can understand both sides of the debate.

Driving without a license is currently a criminal offense in all 50 states. Readers who choose to act on the arguments presented here do so at their own legal risk. **Consult a licensed attorney before taking any legal action.**

This guide is published for educational purposes and as an exercise in legal analysis. It examines whether the current legal framework is consistent with the constitutional right to travel as articulated by the Supreme Court.

The question of whether a state-issued driver's license is constitutionally required to operate a motor vehicle on public roads is one of the most contentious issues in American traffic law. The mainstream legal position — upheld by every court that has ruled on it — is that states may require licenses under their police power.

But what if that position is wrong? What if the constitutional right to travel, properly understood, prohibits exactly the kind of mandatory licensing that all 50 states impose?

This guide presents the **strongest version of that argument**. It does not claim that courts currently agree. It claims that the arguments are stronger than they are given credit for, and that the case law is more ambiguous than the mainstream position suggests.

We will examine:

- The constitutional text and its original meaning
- Supreme Court cases that support a broad reading of the right to travel
- The statutory definition problem — what "motor vehicle" and "drive" actually mean
- The police power doctrine and its limits
- The distinction between regulating *safety* and conditioning *rights*
- Specific case law that has been overlooked or under-analyzed

This is not a sovereign citizen manifesto. It is a legal argument — grounded in text, precedent, and reason — that the current licensing regime may be constitutionally overbroad.

THE CONSTITUTIONAL TEXT



What the Constitution Actually Says

The Constitution does not mention driver's licenses, motor vehicles, or highways. This is not an oversight — it is a reflection of the framers' understanding that certain rights are so fundamental they need not be enumerated.

"The Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States."

U.S. Const. art. IV, § 2

The Privileges and Immunities Clause guarantees that citizens of one state are entitled to the same rights as citizens of another. If driving is a "privilege" (as states claim), then the Privileges and Immunities Clause may require that out-of-state visitors be treated equally — potentially undermining the entire licensing framework that treats residents and non-residents differently.

"No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States."

U.S. Const. amend. XIV, § 1

The 14th Amendment's Privileges or Immunities Clause was intended to be the primary safeguard of individual rights against state action. The question is whether the right to move freely — using the ordinary conveyances of the day — is among those privileges or immunities.

The Original Understanding

When the Constitution was drafted, there were no motor vehicles. But the right it protected was not limited to the technologies of the 18th century. The right to travel protected the right to use the *ordinary and usual conveyances of the day*. In 1787, that meant horses and carriages. In 2026, it means automobiles.

"The use of the automobile as a necessary adjunct to the earning of a livelihood in modern life requires us in the interest of realism to conclude that the RIGHT to use an automobile on the public highways partakes of the nature of a liberty within the meaning of the Constitutional guarantees."

Berberian v. Lussier, 139 A.2d 869, 872 (R.I. 1958)

If the right to travel is a liberty interest — as multiple courts have held — then it is protected by the Due Process Clause of the 14th Amendment. And if it is protected by due process, then the state cannot abridge it without due process of law. The question becomes: does mandatory licensing without individualized justification satisfy due process?

THE RIGHT TO USE HIGHWAYS

II

Courts have repeatedly and consistently held that the right to use public highways is a fundamental right — not a privilege granted by the state.

"The right of a citizen to travel upon the public highways and to transport his property thereon, by horsedrawn carriage, wagon, or automobile, is not a mere privilege which may be permitted or prohibited at will, but a common right which he has under his right to life, liberty and the pursuit of happiness."

Thompson v. Smith, 154 SE 579, 115 Va. 841 (1930)

"The right of the Citizen to travel upon the public highways and to transport his property thereon, in the ordinary course of life and business, is a common right which he has under the right to enjoy life and liberty, to acquire and possess property, and to pursue happiness and safety. It includes the right, in so doing, to use the ordinary and usual conveyances of the day."

Thompson v. Smith; Teche Lines v. Danforth, 12 S.2d 784 (Miss. 1942)

"The use of the highways for the purpose of travel and transportation is not a mere privilege, but a common and fundamental Right of which the public and the individual cannot be rightfully deprived."

Chicago Motor Coach Co. v. City of Chicago, 169 NE 22 (Ill. 1930)

"Every Citizen has an unalienable RIGHT to make use of the public highways of the state; every Citizen has full freedom to travel from place to place in the enjoyment of life and liberty."

People v. Nothaus, 147 Colo. 210 (1961)

"No State government entity has the power to allow or deny passage on the highways, byways, nor waterways... transporting his vehicles and personal property for either recreation or business, but by being subject only to local regulation i.e., safety, caution, traffic lights, speed limits, etc. Travel is not a privilege requiring licensing, vehicle registration, or forced insurances."

Chicago Coach Co. v. City of Chicago, 337 Ill. 200, 169 NE 22 (1930)

THE KEY DISTINCTION

These cases distinguish between the **right to use the highway** (fundamental, protected) and **regulation of how you use it** (safety rules, speed limits, traffic signals). The argument is not that highways should be unregulated — it is that *licensing* is not a safety regulation. It is a *condition precedent* to exercising a right.

THE "ORDINARY CONVEYANCE" ARGUMENT III

The right to travel protects the use of the "ordinary and usual conveyances of the day." This language appears in multiple cases and is central to the argument that automobiles are protected.

"Each citizen has the absolute right to choose for himself the mode of conveyance he desires, whether it be by wagon or carriage, by horse, motor or electric car, or by bicycle, or astride of a horse, subject to the sole condition that he will observe all those requirements that are known as the law of the road."

Swift v. City of Topeka, 43 Kan. 671, 674 (1890)

"A traveler has an equal right to employ an automobile as a means of transportation and to occupy the public highways with other vehicles in common use."

Campbell v. Walker, 78 Atl. 601, 603, 2 Boyce (Del. 1911)

"The right to make use of an automobile as a vehicle of travel along the highways of the state, is no longer an open question. The owners thereof have the same rights in the roads and streets as the drivers of horses or those riding a bicycle or traveling in some other vehicle."

House v. Cramer, 112 NW 3, 134 Iowa 374 (1907)

"Automotive vehicles are lawful means of conveyance and have equal rights upon the streets with horses and carriages."

Chicago Coach Co. v. City of Chicago, 337 Ill. 200, 205 (1930)

The Implication

If walking does not require a license, and cycling does not require a license, and horseback riding does not require a license — and all of these are "ordinary conveyances" that share equal rights on the highway — then on what constitutional basis does the state require a license for the automobile, another ordinary conveyance?

The standard response is "because cars are dangerous." But danger alone does not justify licensing. Horses are dangerous. Bicycles on busy roads are dangerous. The state does not require licenses for those activities. The question is whether the *degree* of danger justifies the *type* of regulation — a blanket licensing requirement versus targeted safety measures.

THE STATUTORY DEFINITION PROBLEM

IV

One of the strongest arguments against mandatory licensing rests on the statutory definitions themselves. The case law and the statutes may not say what most people think they say.

18 U.S.C. § 31 — Federal Definition

*"(6) Motor vehicle. — The term 'motor vehicle' means every description of carriage or other contrivance propelled or drawn by mechanical power and **used for commercial purposes** on the highways..."*

18 U.S.C. § 31(6)

"(10) The term 'used for commercial purposes' means the carriage of persons or property for any fare, fee, rate, charge or other consideration, or directly or indirectly in connection with any business, or other undertaking intended for profit."

18 U.S.C. § 31(10)

THE FEDERAL DEFINITION REQUIRES COMMERCIAL USE

Under federal law, a "motor vehicle" is specifically defined as one "used for commercial purposes." A private citizen driving their personal vehicle for personal reasons does not meet this federal definition.

States are free to define terms differently in their own codes — and they do. But this raises a question: if the federal government recognizes the distinction between commercial and personal use, why don't state vehicle codes?

State Definitions — Broader, But Are They Constitutional?

State vehicle codes define "motor vehicle" more broadly than the federal code, typically as "every vehicle which is self-propelled." But broader definitions do not automatically mean constitutional ones. A state could define "murder" to include jaywalking — the definition would exist, but it would not survive constitutional scrutiny.

"The term 'motor vehicle' is different and broader than the word 'automobile.'"

City of Dayton v. DeBrosse, 23 NE.2d 647, 650; 62 Ohio App. 232 (1939)

"Thus self-driven vehicles are classified according to the use to which they are put rather than according to the means by which they are propelled."

Ex Parte Hoffert, 148 NW 20 (Minn. 1914)

These cases suggest that the legal classification of a vehicle depends on its **use**, not its mechanical nature. A private automobile used for personal travel may be constitutionally different from a commercial vehicle used for profit — even if the state code lumps them together.

THE "OPERATOR" VS. "TRAVELER" DISTINCTION

Courts have recognized a distinction between an "operator" (one engaged in a regulated activity) and a "traveler" (one exercising a fundamental right).

"The word 'operator' shall not include any person who solely transports his own property and who transports no persons or property for hire or compensation."

Statutes at Large, California, Chapter 412, p. 83

This statutory language — from California's own code — explicitly excludes private, non-commercial drivers from the definition of "operator." If you are not an "operator," the licensing requirement for operators does not apply to you.

"The court makes it clear that a license relates to qualifications to engage in profession, business, trade or calling; thus, when merely traveling without compensation or profit, outside of business enterprise or adventure with the corporate state, no license is required of the natural individual traveling for personal business, pleasure and transportation."

Wingfield v. Fielder, 2d Ca. 3d 213 (Cal. App. 1972)

The Licensing Principle

"Those who have the right to do something cannot be licensed for what they already have right to do as such license would be meaningless."

City of Chicago v. Collins, 51 NE 907, 910 (Ill. 1898)

"A license means leave to do a thing which the licensor could prevent."

Blatz Brewing Co. v. Collins, 160 P.2d 37, 39; 69 Cal. App. 2d 639 (1945)

"The object of a license is to confer a right or power, which does not exist without it."

Payne v. Massey, 196 SW.2d 493, 145 Tex. 273 (1946)

These definitions raise a fundamental question: if the right to travel is a constitutional right, then licensing it is either (a) redundant (you already have the right) or (b) a restriction on the right (you need permission to exercise it). Neither is consistent with the concept of an unalienable right.

CHALLENGING HENDRICK V. MARYLAND

VI

Hendrick v. Maryland (1915) is the case most commonly cited to uphold driver's license requirements. But it is not without problems.

What Hendrick Actually Held

Hendrick held that Maryland could require a license to operate a motor vehicle on its highways. The decision was unanimous. It has never been overruled. These facts are not in dispute.

But What Hendrick Did NOT Decide

THE ARGUMENT

Hendrick did not address the constitutional right to travel.

The case was decided in 1915, before the modern right-to-travel doctrine was established. The key cases — *Shapiro v. Thompson* (1969), *United States v. Guest* (1966), *Saenz v. Roe* (1999) — came decades later. Hendrick was decided under a much narrower understanding of the right to travel.

THE ARGUMENT

Hendrick assumed the police power without examining its limits.

The Court stated that states "may rightfully prescribe uniform regulations necessary for public safety and order." But it did not examine whether licensing is actually a "regulation necessary for public safety" or whether it is an overbroad restriction on a fundamental right. The Court assumed the answer rather than analyzing it.

THE ARGUMENT

Hendrick predates the strict scrutiny framework.

Modern constitutional analysis requires the government to use the **least restrictive means** when burdening a fundamental right. Hendrick did not apply this standard because it had not yet been developed. Under modern doctrine, a state must show that licensing is narrowly tailored to serve a compelling government interest — and that no less restrictive alternative exists.

THE ARGUMENT

Hendrick addressed only the state's power, not the individual's right.

The case framed the question as "may a state require a license?" rather than "does the individual have a right to drive without one?" Under modern doctrine, the question should be framed from the individual's perspective: does the individual have a liberty interest in operating a personal vehicle, and if so, what level of scrutiny applies to the state's restriction?

None of this means Hendrick is wrong. It means Hendrick may be **incomplete** — decided under a legal framework that has since evolved. The question is whether a modern court, applying strict scrutiny to the right to travel, would reach the same conclusion.

THE POLICE POWER AND ITS LIMITS

States justify driver's license requirements under the police power — the inherent authority to enact laws for public health, safety, welfare, and morals. But the police power is not unlimited.

What the Police Power Can Do

- Set speed limits
- Require seatbelts
- Prohibit drunk driving
- Establish traffic signal patterns
- Require vehicle safety inspections
- Regulate commercial transportation

What the Police Power Cannot Do

- Condition the exercise of a fundamental right on government permission
- Impose blanket restrictions without individualized justification
- Use breadth when narrowness would suffice
- Transform a right into a privilege

"With regard particularly to the U.S. Constitution, it is elementary that a Right secured or protected by that document cannot be overthrown or impaired by any state police authority."

Donnelly v. Union Sewer Pipe Co., 184 U.S. 540 (1902)

The Least Restrictive Means Test

When the government burdens a fundamental right, modern constitutional doctrine requires it to use the **least restrictive means** available. The question is: is a blanket licensing requirement the least restrictive means of ensuring road safety?

Consider the alternatives:

CURRENT APPROACH	LESS RESTRICTIVE ALTERNATIVE
License required before driving	Test required only after an incident or citation
License required for all drivers	License required only for commercial operators
License required regardless of competence	Competency-based system (demonstrate skill, not just pass a test)
State monopoly on licensing	Private certification with state oversight

If any of these alternatives would achieve the state's safety interest with less burden on the right to travel, then the current system may not survive strict scrutiny.

THE UNCONSTITUTIONAL CONDITIONS DOCTRINE

VIII

There is a constitutional doctrine that directly addresses the licensing question: the **unconstitutional conditions doctrine**. It holds that the government cannot condition a benefit on the surrender of a constitutional right.

"Persons faced with an unconstitutional licensing law which purports to require a license as a prerequisite to exercise of right... may ignore the law and engage with impunity in exercise of such right."

Shuttlesworth v. Birmingham, 394 U.S. 147, 150 (1969)

"If [state] officials construe a vague statute unconstitutionally, the citizen may take them at their word, and act on the assumption that the statute is void."

Shuttlesworth v. Birmingham, 394 U.S. 147 (1969)

Applying the Doctrine

The argument runs as follows:

1. The right to travel is a fundamental constitutional right
2. Operating an ordinary conveyance (automobile) on public highways is an exercise of that right
3. A license requirement conditions the exercise of this right on government permission
4. Under the unconstitutional conditions doctrine, the government cannot condition a right on a license
5. Therefore, the license requirement is unconstitutional
6. Under *Shuttlesworth*, citizens may ignore an unconstitutional licensing requirement

THE COUNTERARGUMENT

Courts respond that *Shuttlesworth* addressed a First Amendment licensing scheme (parade permits), not driver's licenses. The analogy is imperfect. But the *principle* — that the government cannot use licensing to gate access to constitutional rights — is broadly applicable. The question is whether driving is an exercise of a constitutional right. If it is, *Shuttlesworth's* logic applies.

THE DUE PROCESS ARGUMENT

IX

Multiple courts have held that operating an automobile involves a **liberty interest** protected by the Due Process Clause. If that is true, then the state must provide due process before burdening that liberty.

"The use of the automobile as a necessary adjunct to the earning of a livelihood in modern life requires us in the interest of realism to conclude that the RIGHT to use an automobile on the public highways partakes of the nature of a liberty within the meaning of the Constitutional guarantees."

Berberian v. Lussier, 139 A.2d 869, 872 (R.I. 1958)

"The right to operate a motor vehicle [an automobile] upon the public streets and highways is not a mere privilege. It is a right of liberty, the enjoyment of which is protected by the guarantees of the federal and state constitutions."

Adams v. City of Pocatello, 416 P.2d 46, 48; 91 Idaho 99 (1966)

"...the right of the citizen to drive on a public street with freedom from police interference... is a fundamental constitutional right"

People v. White, 97 Cal.App.3d 141, 158 Cal.Rptr. 562, 566-67 (1979)

"The RIGHT of the citizen to DRIVE on the public street with freedom from police interference, unless he is engaged in suspicious conduct associated in some manner with criminality is a FUNDAMENTAL CONSTITUTIONAL RIGHT which must be protected by the courts."

People v. Horton, 14 Cal.App.3d 667 (1971)

The Implication

These cases were decided in the context of license suspension and revocation — they assumed a license was required. But their *reasoning* extends further. If driving is a fundamental constitutional right, then:

- The state cannot impose it without due process
- The state must use the least restrictive means to regulate it
- A blanket licensing requirement — whichs the right from everyone who doesn't comply — may be overbroad
- The state must demonstrate a compelling interest and narrow tailoring for each component of the licensing requirement

THE REVENUE PROBLEM



If the right to travel is fundamental, and if states cannot tax people for exercising it (per *Crandall v. Nevada*), then driver's license fees raise a constitutional question.

"He has the right to come to the seat of the government... this right is in its nature independent of the will of any State over whose soil he must pass in the exercise of it."

Crandall v. Nevada, 73 U.S. 35 (1868)

The Fee as a Tax

Driver's license fees range from \$20 to \$80+ depending on the state. These fees are not based on the cost of administration — they are set by legislatures as revenue measures. Some states use license fee revenue to fund road construction, law enforcement, and other general government functions.

If a license fee is a *tax on the exercise of a fundamental right*, it may violate the principle established in *Crandall*. The state cannot impose a financial barrier to exercising a constitutional right.

The Counterargument

Courts distinguish between a tax on *travel* (unconstitutional per *Crandall*) and a *regulatory fee* for a licensed activity (constitutional under police power). But this distinction depends on whether driving is a "licensed activity" or a "constitutional right." If it is the latter, the fee is a tax on a right.

The Waiver Problem

When you apply for a driver's license, you sign a document that includes various waivers and agreements. You agree to submit to drug tests, to forfeit certain rights in traffic stops, and to comply with conditions that apply only to license holders. If driving is a right, then conditioning it on signing away other rights is constitutionally suspect.

Intellectual honesty requires addressing the strongest arguments against this position.

STRONGEST COUNTERARGUMENT

Hendrick v. Maryland directly addresses this question.

This is true. Hendrick held that states may require licenses. But Hendrick was decided in 1915, before the modern right-to-travel doctrine existed. A modern court applying strict scrutiny might reach a different result.

STRONG COUNTERARGUMENT

Every court that has ruled on this has upheld licensing.

This is also true. But courts generally apply stare decisis (following precedent) and defer to legislative judgments about police power. A case that directly challenged the licensing requirement under strict scrutiny — with modern right-to-travel doctrine — has not been fully litigated at the Supreme Court level.

LEGITIMATE CONCERN

Without licensing, how do we ensure road safety?

This is a real concern. The answer is not "no regulation" — it is "different regulation." Speed limits, traffic signals, vehicle inspections, DUI laws, and liability insurance all address safety without requiring a blanket license. A competency-based system (demonstrate skill, don't just pass a test) might be more effective.

PRACTICAL REALITY

Arguing this in court will get you convicted.

Currently, yes. Courts apply existing precedent without re-examining it. But legal change happens when arguments are made, refined, and eventually accepted. The right to travel itself was once a fringe argument too.

WHAT WOULD CHANGE THE LAW?

XII

If this argument is to move from theory to practice, several things would need to happen:

1. A Test Case

A defendant would need to raise the right-to-travel defense in a case with sympathetic facts — perhaps a rural driver with no access to public transit, stopped for driving without a license while transporting a child to a medical appointment. The case would need to be appealed through the state system to federal court.

2. A Constitutional Challenge

The case would need to frame the licensing requirement as a **burden on a fundamental right** subject to strict scrutiny, rather than as a valid exercise of police power subject to rational basis review. This reframing is the key legal move.

3. Expert Testimony

The plaintiff would need experts to testify that (a) driving is necessary for daily life in much of America, (b) public transit alternatives are inadequate, and (c) the licensing requirement imposes a disproportionate burden on the right to travel.

4. A Willing Court

Ultimately, legal change requires a court willing to reconsider existing precedent. This happens rarely, but it happens. *Brown v. Board of Education* overturned *Plessy v. Ferguson*. *Lawrence v. Texas* overturned *Bowers v. Hardwick*. The right to travel doctrine has continued to evolve — the question is whether it will evolve further.

THE LONG VIEW

Every right that is now considered fundamental was once controversial. The right to travel itself was once considered a "mere privilege." The argument presented in this guide may not prevail today. But legal arguments have a way of finding their moment. The question is not whether the argument is strong — it is whether the time is right.

The constitutional right to travel is well-established. Its scope, however, is not fully settled. The argument that mandatory driver's license requirements are unconstitutional rests on several pillars:

1. **The right to travel protects the use of ordinary conveyances** — and the automobile is the ordinary conveyance of the modern era
 2. **Courts have repeatedly held** that driving involves a liberty interest protected by the Constitution
 3. **The statutory definitions** — particularly the federal definition of "motor vehicle" — distinguish between commercial and personal use
 4. **The unconstitutional conditions doctrine** prohibits conditioning a right on government permission
 5. **Hendrick v. Maryland** predates the modern right-to-travel framework and may not survive strict scrutiny analysis
 6. **The police power has limits** — and conditioning a fundamental right on a license may exceed those limits
- This argument has not prevailed in court. Courts have consistently upheld licensing requirements under the police power doctrine. But the argument is not frivolous — it is grounded in real case law, real statutory analysis, and real constitutional principles.

The right to travel was once considered too obvious to need protection. Then it was considered too radical to enforce. Today, it is considered too limited to include driving. Tomorrow, the law may evolve again.

"The right of a citizen to travel upon the public highways... is not a mere privilege which may be permitted or prohibited at will, but a common right."

— Thompson v. Smith, 154 SE 579 (1930)

Supreme Court Cases

1. Crandall v. Nevada, 73 U.S. 35 (1868)
2. Paul v. Virginia, 75 U.S. 168 (1869)
3. Hendrick v. Maryland, 235 U.S. 610 (1915)
4. United States v. Guest, 383 U.S. 745 (1966)
5. Shapiro v. Thompson, 394 U.S. 618 (1969)
6. Shuttlesworth v. Birmingham, 394 U.S. 147 (1969)
7. Sáenz v. Roe, 526 U.S. 489 (1999)

State Cases

1. Swift v. City of Topeka, 43 Kan. 671 (1890)
2. City of Chicago v. Collins, 51 NE 907 (Ill. 1898)
3. Campbell v. Walker, 78 Atl. 601 (Del. 1911)
4. House v. Cramer, 112 NW 3 (Iowa 1907)
5. Ex Parte Hoffert, 148 NW 20 (Minn. 1914)
6. Thompson v. Smith, 154 SE 579 (Va. 1930)
7. Chicago Motor Coach v. City of Chicago, 169 NE 22 (Ill. 1930)
8. Chicago Coach Co. v. City of Chicago, 337 Ill. 200 (1930)
9. City of Dayton v. DeBrosse, 23 NE.2d 647 (Ohio 1939)
10. Blatz Brewing Co. v. Collins, 160 P.2d 37 (Cal. 1945)
11. Payne v. Massey, 196 SW.2d 493 (Tex. 1946)
12. Berberian v. Lussier, 139 A.2d 869 (R.I. 1958)
13. People v. Nothaus, 147 Colo. 210 (1961)
14. Adams v. City of Pocatello, 416 P.2d 46 (Idaho 1966)
15. People v. Horton, 14 Cal.App.3d 667 (1971)
16. Wingfield v. Fielder, 2d Ca. 3d 213 (Cal. 1972)
17. People v. White, 97 Cal.App.3d 141 (1979)

Federal Statutes

- U.S. Const. art. IV, § 2 (Privileges and Immunities)
- U.S. Const. amend. XIV, § 1 (Due Process / Privileges or Immunities)
- 18 U.S.C. § 31 (Federal Motor Vehicle Definitions)
- 49 U.S.C. § 40103 (Air Travel Rights)

